

**General Knowledge**

**Indian Polity**

**STUDY NOTES**

**Sessions of Parliament**

PREAMBLE  
PEOPLE OF INDIA, h



## SESSIONS OF PARLIAMENT



- The term "**Session**" refers to the period during which Parliament meets to conduct its business.
- Each meeting of a day consists of 2 sittings:
  - **Morning** Sitting: It is held from 11 AM to 1 PM, and
  - **Post-Lunch** Sitting: It is held from 2 PM to 6 PM.

### **Summoning of the session**

- The **President** of India summons each House of Parliament. However, he has to do this based on the recommendation of the Cabinet Committee on Parliamentary Affairs.
- A **gap of no more than six months** must exist between two sessions (**Article 85**).  
(The parliament should meet **at least twice a year**.)





# PARLIAMENTARY SESSIONS

**01**

## **Budget Session (February to May)**

- Considered the most important session.
- The Union Budget is presented. (Annual Financial Statement- Article 112)

**02**

## **Monsoon Session (July to September)**

Primarily used to pass bills and discuss matters postponed during the Budget Session.

**03**

## **Winter Session (November to December)**

Shortest session, focuses on urgent legislative issues and discussions.

## Adjournment, Prorogation, and Dissolution

### Adjournment

Suspension of parliamentary sitting for a short time (a day, a week, etc.).

### Adjournment sine die

Adjournment without a specified date of resumption.

#### NOTE:

- The power of Adjournment and Adjournment sine die lie with the presiding officer of the house.
- The Presiding Officer can also call a sitting of the House before the date or time to which it has been adjourned or at any time after the House has been Adjourned Sine Die.

### Prorogation

The session ends after all business is concluded, declared by the President.

(The president can also prorogue the house while in the session).

### Dissolution

- Dissolution refers to the **termination of the life of the Lok Sabha** (the lower house of Parliament).
- Once dissolved, all business in the Lok Sabha is discontinued, and new elections are held to reconstitute the House.
- Unlike prorogation and adjournment, which are temporary halts in parliamentary activities, dissolution marks the end of the entire term of the Lok Sabha.
- The **Rajya Sabha** (the upper house), being a permanent body, is **not subject to dissolution**.
- **Article 83(2)** of the Indian Constitution mandates that the Lok Sabha's term is five years from the date of its first meeting unless sooner dissolved by the President.

DID YOU KNOW?

In case of a hung parliament (no single party or coalition has a majority), the President might consult political parties to gauge the possibility of forming a new government, and if it fails, the Lok Sabha may be dissolved.

- **Types of Dissolution:**

- **Automatic Dissolution:** The Lok Sabha is dissolved automatically at the end of its five-year term as stipulated by the Constitution.
- **Pre-Mature Dissolution:** The President can dissolve the Lok Sabha before the completion of its term on the recommendation of the Council of Ministers headed by the Prime Minister.

- **Effect of Dissolution:**

- All pending bills and matters, except Money Bills, lapse. Any bill pending in Lok Sabha (whether passed by Rajya Sabha or not) also lapses.
- Bills pending in Rajya Sabha, which have not been passed by Lok Sabha, do not lapse.
- Committees of the Lok Sabha stand dissolved.
- A bill notified for joint sitting before the dissolution of Lok Sabha does not lapse.
- A bill passed by both houses but pending for president's assent does not lapse.
- A bill passed by both houses but returned for reconsideration by the president does not lapse.

- **Post-Dissolution:**

- After dissolution, General Elections are held to elect a new Lok Sabha.
- The Election Commission of India conducts elections within a stipulated time, usually **within 6 months**.
- The outgoing Lok Sabha ceases to exist once dissolved, and the newly elected members of Lok Sabha will be sworn in during the first session after the elections.

## Quorum

- The term 'Quorum' refers to the **minimum number of members** required to be present in the House to conduct its business. This number is set at **1/10th of the total members in each House**, including the Presiding Officer.
- **For the Lok Sabha, the Quorum is calculated as follows:**
  - $\text{Quorum} = 545 \div 10 = 54.5 \approx 55$  members
  - Thus, at least 55 members must be present in the Lok Sabha for it to carry out any business.
- **For the Rajya Sabha, the Quorum is:**
  - $\text{Quorum} = 250 \div 10 = 25$  members
  - Therefore, at least 25 members must be present in the Rajya Sabha for proceedings to take place.

- If the Quorum is not met during a session, it is the responsibility of the **Presiding Officer** to either adjourn the House or suspend the meeting until the required number of members is present.

## Voting in the House

- Any matter presented during a sitting of either House of Parliament, or during a joint sitting of both Houses, is decided by a specific type of majority based on the nature of the matter at hand.
- The following **key points** are important regarding voting procedures in Parliament:
  - The Presiding Officer does not vote initially but exercises a casting vote in the event of a tie.
  - The validity of the proceedings in the House remains intact, regardless of unauthorized voting, participation, or any vacancies in its membership.

## Methods of Voting

Several methods are employed for voting in the Lok Sabha, as outlined below:

- **Voice Vote**
  - In the Voice Vote method, members in favor of the motion say "Aye," while those opposed say "No."
  - The Presiding Officer listens to the volume of both responses and makes a decision based on which side is louder.
  - This method is subjective, relying on the judgment of the presiding officer.
- **Division**
  - In the Division method, votes are recorded through one of the following three ways:
    - By using the Automatic Vote Recording Equipment,
    - By distributing 'Ayes' and 'Noes' slips in the House,
    - By members physically moving into the Lobbies.
- **Secret Ballot**
  - Secret Ballot voting is employed during certain key procedures to ensure the confidentiality of votes.
  - Unlike Open Voting, where members' votes are visible to all, secret ballots keep individual votes confidential.
  - In Open Voting, the results are displayed in three colors: **Green** for 'Ayes', **Red** for 'Noes', and **Yellow** for 'Abstain' on the individual display panel.

- In Secret Ballot, a white light flashes on the panel to indicate the vote has been recorded, but individual choices are not revealed.
- **Recording of Votes by Slips**
  - Members receive two slips, marked 'Aye' and 'No', and select the appropriate one based on their decision. These slips are collected, and the totals are tallied.
- **Physical Count of Members Instead of a Formal Division**
  - If the Speaker feels a formal division is unnecessary, they may ask members in favor of 'Ayes' and 'Noes' to stand in their places. After counting, the Speaker declares the result. In this case, individual votes are not recorded.

### Casting Vote

- If the Division results in an equal number of 'Ayes' and 'Noes,' the Speaker decides the outcome using a casting vote.
- According to the Constitution, the Presiding Officer cannot vote initially but can cast a vote in the event of a tie.

### Lame-duck Session

- Lame-duck Session refers to the last session of the preceding Lok Sabha after a new Lok Sabha has been elected.
- Those members of the preceding Lok Sabha who **could not get re-elected** to the new Lok Sabha are called lame-ducks.

### Language in Parliament

- The Indian Constitution designates **Hindi** and **English** as the official languages for conducting business in Parliament.
- Although English was initially intended to be phased out as a parliamentary language after fifteen years after the commencement of the Constitution (by 1965), the **Official Languages Act of 1963 allowed its continued use alongside Hindi.**
- Additionally, the **Presiding Officer has the discretion to permit a Member of Parliament to address the House in their mother tongue**, even if it is a language other than Hindi or English.



## Joint Session of Parliament

A Joint Session of the Indian Parliament is a rare and special procedure used to resolve a deadlock between the two Houses—Lok Sabha and Rajya Sabha—over a legislative bill. It is convened by the **President** of India under **Article 108** of the Constitution.

### Situations Leading to a Joint Session

A Joint Session may be called when a bill, **other than a Money Bill or a Constitutional Amendment Bill**, faces a **deadlock** in Parliament under any of the following circumstances:

- Rejection of the bill by one House.
- Disagreement between the two Houses on the amendments to be made.
- Non-passing of the bill by one House within six months after the other House has passed it.

### Summoning of Joint Session

- The **President** summons the Joint Session to break the deadlock between the two Houses.
- The session is chaired by the **Speaker** of the Lok Sabha or, in their absence, the Deputy Speaker. If both are absent, the Deputy Chairman of the Rajya Sabha presides over the session.

### Voting in a Joint Session

- **Members of both Lok Sabha and Rajya Sabha** participate in the Joint Session.
- The bill is passed by a **majority of the total members present and voting** during the Joint Session.
- Since the Lok Sabha has a larger membership than the Rajya Sabha, it usually has an advantage in Joint Sessions.

### Important Joint Sessions in Indian History

- Dowry Prohibition Act (1961): The first-ever Joint Session was held to pass this bill.
- Banking Service Commission (Repeal) Bill (1978): Another notable Joint Session.
- Prevention of Terrorism Act (POTA) (2002): A Joint Session was convened to pass this controversial bill.



## Exclusions

A **Money Bill or a Constitutional Amendment Bill** cannot be referred to a Joint Session as the Lok Sabha holds exclusive powers over Money Bills, and Constitutional Amendments require a special majority in each House.

## Constitutional Provisions

- **Article 108:** Provisions related to the Joint Session.
- **Article 109:** Excludes Money Bills from Joint Sessions, as these are handled only by the Lok Sabha.

